

## 26SMCV01533 26SMCV01533

County: los-angeles

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Case Number: 26SMCV01533 Hearing Date: August 21, 2026 Dept: P

### Tentative Ruling

Red

Hawk Enterprises, LLC, et al. v. BMW North America, LLC, Case No. 26SMCV01533

Hearing

Date: August 21, 2026

Defendant

BMW of North America's Demurrer to Plaintiffs' First Amended Complaint

### Background

On

March 23, 2026, plaintiffs Red Hawk Enterprises LLC (Red Hawk) and Guilherme Rosin (Rosin) (collectively, Plaintiffs) filed a complaint against defendants BMW of North America (Defendant) and DOES 1 through 10, inclusive.

On

April 20, 2026, Plaintiffs filed the operative First Amended Complaint (FAC), which asserts the following causes of action: (1) Breach of Express Warranty Obligations; (2) Breach of Implied Warranty Obligations; (3) Failure to Repair in a Good and Workmanlike Manner; (4) Failure to Repair Within Thirty Days; (5) Violation of the Consumer Legal Remedies Act; and (6) Violation of the Magnuson-Moss Warranty Act. (FAC at p. 1.)

On

May 21, 2026, Defendant filed a demurrer to the first, second, third, fourth,

and sixth causes of action in the FAC.

On

July 30, 2026, Plaintiffs filed an opposition.

On

August 5, 2026, Defendant replied.

Demurrer to First Amended Complaint

Evidentiary

Objections

The

Court OVERRULES Plaintiffs' evidentiary objections numbers 1, 2, 3, and 4 to the declaration of Adam Miller in support of the demurrer.

Judicial

Notice

Defendant

requests that the Court take judicial notice of the "BMW NA Statement of Information filed with the State of California, Office of the Secretary of State, dated November 11, 2024." (05/21/26 Request for Judicial Notice at p. 1:26-27.)

The

Court GRANTS the request for judicial notice. The Court may take judicial notice of documents filed with the California Secretary of State. (Kalnoki v. First American Trustee Servicing Solutions, LLC (2017) 8 Cal.App.5th 23, 37.) However, "[w]hile courts take judicial notice of public records, they do not take notice of the truth of matters stated therein." (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.)

The

Court OVERRULES Plaintiffs' objections to the request for judicial notice.

Meet

and Confer Requirement

Before

filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).)¿

The

Court finds that the meet and confer requirement has not been satisfied. (Declaration of Adam Miller Filed May 21, 206 at ¶¶ 3-5, Ex. 2.) Meeting and conferring via email is not a sufficient means of meeting and conferring pursuant to Code Civ. Proc. § 430.41. The Court will assess the merits of the demurrer; however, the parties are reminded to comply with the requirements of the Code of Civil Procedure.

Governing

Law

A party may demur to a

complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.)¿On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

If the demurrer is sustained, leave to amend should

be granted if there is a reasonable possibility the defect can be cured by amendment, and the burden is on the plaintiff to demonstrate how the complaint can be amended. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

Pertinent Allegations of  
the FAC

Plaintiffs allege that on  
or about June 23, 2023, Plaintiffs purchased a Certified Pre-Owned (CPO) 2020  
BMW X5 (the Subject Vehicle). (FAC ¶ 4.) Plaintiffs allege that pursuant to the  
Song-Beverly Consumer Warranty Act (SBA), the Subject Vehicle constitutes a  
“new motor vehicle.” (FAC ¶ 5.) Defendant is a manufacturer and Plaintiffs  
allege that Defendants offered an express warranty to Plaintiffs pursuant to  
the SBA. (FAC ¶¶ 7-8.) Plaintiffs allege that the sale of the Subject Vehicle  
was accompanied by an implied warranty that the Subject Vehicle was  
merchantable. (FAC ¶ 9.) Further, the sale of the Subject Vehicle was  
accompanied by Defendant’s implied warranty of fitness. (FAC ¶ 9.)

Plaintiffs allege that  
the Subject Vehicle suffered from non-conformities to warranty including, but  
not limited to, malfunction warning, instrument cluster, and loss of power.  
(FAC ¶ 10.) “The vehicle was delivered for repair of defects on or about  
January 10, 2024 . . . on or about January 14, 2025 . . . on or about January  
27, 2025 . . . on or about May 28, 2025 . . . and on or about November 12, 2025  
. . . .” (FAC ¶ 11.) “The defects have not been properly repaired or repaired  
in a reasonable number of attempts or amount of time.” (FAC ¶ 11.)

Analysis

Purported Failure to  
Allege the Vehicle was Purchased in California

Defendant contends that the first, second, and  
fourth causes of action fail because Plaintiffs have not alleged that the  
Subject Vehicle was purchased in California. (Dem. at pp. 7-8.) Plaintiffs  
contend that they have adequately alleged a transaction within the SBA. (Opp’n  
at pp. 7-8.)

A claim under the SBA can proceed only if a  
plaintiff alleges that the sale of the vehicle occurred in California. (*Galicia  
v. Country Coach, Inc.* (2009) 324 Fed.Appx. 687, 688.) “A sale occurs  
under California law at the time title to the goods passes from the buyer to  
the seller.” (*Ibid.*)

Plaintiffs have alleged that Defendant is “registered to do business in the State of California and [does] business in the County of Los Angeles.” (FAC ¶ 1.) Also, attached to the FAC is an affidavit of venue which sets forth that the acts set forth in the FAC occurred in Los Angeles County. (See Affidavit of Venue at ¶ 3.) Although the FAC does not explicitly allege that the sale occurred in California, the Court is allowed to draw reasonable inferences on demurrer. (*Rodas v. Spiegel* (2001) 87 Cal.App.4th 513, 517.)

Were this the only deficiency in the FAC the Court would likely be inclined to infer that the sale occurred in California. However, because the demurrer is being sustained with leave to amend on other grounds, the Court will also SUSTAIN the demurrer on the ground that the Complaint does not explicitly allege the sale occurred in California, and will give Plaintiffs leave to amend to state the sale location explicitly in their amended complaint.

The Standing of  
Plaintiff Red Hawk as to SBA Claims

Defendant asserts that plaintiff Red Hawk lacks standing to bring a claim under the SBA. (Dem. at pp. 8-9.) Plaintiffs contend that plaintiff Rosin satisfies the SBA's definition of “buyer” and any deficiency as to plaintiff Red Hawk is curable by amendment. (Opp'n at p. 8.)

The SBA “defines a buyer as any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail.” (*Park City Services, Inc. v. Ford Motor Co., Inc.* (2006) 144 Cal.App.4th 295, 302.) “Consumer goods means any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables.” (Civ. Code, § 1791, subd. (a).) As to corporate entities, a buyer under the SBA includes “some corporate purchasers of new motor vehicles for business use –namely, those to whom not more than five motor vehicles are registered in this state.” (*Park City Services, Inc.*, *supra*, 144 Cal.App.4th 295, 306 [italics in original].)

The FAC is silent as to the relationship of plaintiff Red Hawk as to the Subject Vehicle. Thus, the Court finds that the

FAC does not sufficiently allege the standing of plaintiff Red Hawk to support claims under the SBA as to plaintiff Red Hawk.

Thus, based on the allegations of the FAC, plaintiff Red Hawk lacks standing to bring claims pursuant to the SBA.

Breach of Express Warranty Causes of Action (First and Fourth Causes of Action)

Defendant contends that the first and fourth causes of action fail because Plaintiffs purchased a used vehicle that is not subject to the SBA's express warranty provisions. (Dem. at pp. 3-5.) Plaintiffs contend that the first and fourth causes of action are legally sufficient because Defendant issued its own express warranty on the Subject Vehicle. (Opp'n at pp. 4-5.)

"The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective." (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 195 ("Rodriguez").) Civil Code § 1793.2(d)(2) "gives new car buyers what is known as a refund-or-replace remedy: It requires manufacturers to promptly replace a defective new motor vehicle or promptly make restitution to the buyer when the manufacturer is unable to service or repair a new motor vehicle . . . to conform to the applicable express warranties after a reasonable number of repair attempts." (Ibid.) Civil Code § 1793.22(e)(2) "defines new motor vehicle to include a new vehicle bought or used primarily for personal purposes as well as a dealer-owned vehicle and a demonstrator or other motor vehicle sold with a manufacturer's new car warranty." (Ibid.)

In Rodriguez, plaintiffs Everardo Rodriguez and Judith Arellano bought a two-year old vehicle with over 55,000 miles from a used car dealer. (Rodriguez, supra, 17 Cal.5th 189, 195.) The vehicle had an unexpired manufacturer's new car warranty, but there was no allegation that any new warranty was provided as part of the sale. Shortly after the sale, the car repeatedly experienced engine problems which, despite numerous repair attempts by defendant FCA US, LLC (FCA), were not resolved. (Id. at p. 196.) Plaintiffs sued FCA to enforce the refund-or-replace provision in Civ. Code § 1793.2(d)(2) and argued that their vehicle "was a new motor vehicle because it was a motor vehicle

sold with a manufacturer's new car warranty." (Ibid.)

FCA moved for summary judgment on the grounds that the vehicle was not a "new motor vehicle" within the meaning of Civ. Code § 1793.22(e)(2). (Id. at p. 196.) The trial court granted the motion for summary judgment of FCA, and the Court of Appeal affirmed such ruling. (Id.) The Court of Appeal held that "the phrase other motor vehicle sold with a manufacturer's new car warranty in [Civ. Code § 1793.22(e)(2)] does not cover the sale of previously owned vehicles with some balance remaining on the manufacturer's express warranty." (Id. at p. 196-197.)

The Supreme Court of California granted review. (Rodriguez, supra, 17 Cal.5th 189, 197.) The Rodriguez court held that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a new motor vehicle sold with a manufacturer's new car warranty under [Civ. Code § 1793.22(e)(2)'s] definition of new motor vehicle unless the new car warranty was issued with the sale." (Id. at p. 196) (emphasis added.)

Here, Plaintiffs allege that they purchased a certified pre-owned BMW and that they were offered an express warranty as part of the sale. (FAC ¶ 8.) The FAC complaint, however, offers no additional details about the express warranty Plaintiffs allege was issued with the sale. The Court therefore SUSTAINS the demurrer to the first and fourth causes of action in the FAC with 20 days' leave to amend.

#### Second Cause of Action for Breach of Implied Warranty Obligations

Defendant asserts that the second cause of action fails because the Subject Vehicle was purchased used, and because Defendant is a distributor and not a manufacturer. (Dem. at pp. 9-12.) Plaintiffs argue that "[w]hether Defendant is a manufacturer, a distributor that issued a used-vehicle warranty, or both, is a factual question that cannot be resolved on demurrer. As such, the demurrer to the [s]econd [c]ause of [a]ction should be overruled." (Opp'n at p. 10:9-10.)

"When there has been a breach of the implied warranty of merchantability, a buyer may bring an action for the recovery of damages and other legal and equitable relief." (Mexia v. Rinker Boat Co.,

Inc. (2009) 174 Cal.App.4th 1297, 1303 [internal quotations omitted].)

“The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (Id. at p. 1304.) “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (Id. at p. 1305.)

Civ. Code § 1791(a) defines consumer goods to mean

“any new product or part thereof that is used, bought, or leased for use primarily for personal, family, or household purposes, except for clothing and consumables.” (Civ. Code, § 1791, subd. (a).) Here, it is undisputed that the Subject Vehicle is a certified pre-owned vehicle and thus not new. As such, Civ. Code § 1791.1 does not provide a basis for the breach of implied warranty obligations claim.

Instead, any implied warranty would come from Civ.

Code § 1795.5, which provides in part:

“Notwithstanding the provisions of subdivision (a) of Section 1791 defining consumer goods to mean new goods, the obligation of a distributor or retail seller of used consumer goods in a sale in which an express warranty is given shall be the same as that imposed on manufacturers under this chapter except . . . (a) It shall be the obligation of the distributor or retail seller making express warranties with respect to used consumer goods (and not the original manufacturer, distributor, or retail seller making express warranties with respect to such goods when new) to maintain sufficient service and repair facilities within this state to carry out the terms of such express warranties.”

(Civ. Code, § 1795.5, subd.

(a).)

As stated in Ruiz Nunez v. FCA US

LLC (2021) 61 Cal.App.5th 385, 399 (“Nunez”) “only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods.” (Nunez, supra, 61 Cal.App.5th 389, 399.) Interestingly, Plaintiffs allege that Defendant is a manufacturer while Defendant contends that it is a distributor. (FAC ¶ 7) (See Dem. at p. 1:12-13; see also RJN, Ex. 1.) While Plaintiffs are correct that this creates a factual issue that should not be resolved on a



demurrer, it is also true that the FAC contains no factual allegations regarding Defendant's status, only conclusions.

As such, the Court therefore SUSTAINS the demurrer to the second cause of action in the FAC with 20 days' leave to amend.

### Third Cause of Action

for Failure to Repair in a Good and Workmanlike Manner

Defendant argues that the third cause of action is defective because it lacks specificity and the allegations do not establish that Defendant has a duty. (Dem. at pp. 13-14.) Plaintiffs contend that the third cause of action is legally sufficient. (Opp'n at p. 11.)

"Any individual, partnership, corporation, association, or other legal relationship which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner." (Civ. Code § 1796.5.)

The Court finds that the third cause of action is sufficiently alleged. (FAC ¶¶ 36-41.) Plaintiffs have alleged a duty of Defendant "to the purchaser to perform . . . services in a good and workmanlike manner." (FAC ¶ 39.) To the extent that Defendant contends that the third cause of action is too conclusory, the Court finds such contention unpersuasive. Plaintiffs' allegations mirror the language of Civ. Code § 1796.5. (FAC ¶¶ 38-39.) Plaintiffs have apprised Defendant "of the factual basis of the claim." (Birke v. Oakwood Worldwide (2009) 169 Cal.App.4th 1540, 1549.)

The demurrer to the third cause of action is  
OVERRULED.

### Sixth Cause of Action

for Breach of the Magnuson-Moss Warranty Act

"[C]laims under the Magnuson-Moss Warranty Act stand or fall with . . . express and implied warranty claims under state law." (Clemens v. DaimlerChrysler Corp. (2008) 534 F.3d 1017, 1022.)

Given that the Court has identified deficiencies as

to the first, second, and fourth causes of action, the sixth cause of action fails under Clemens, supra, 534 F.3d 1017, 1022.)

The demurrer to the sixth cause of action is SUSTAINED with 20 days' leave to amend.

Conclusion

Based

on the foregoing, the Court SUSTAINS the demurrer to the first, second, fourth, and sixth causes of action in the FAC with 20 days leave to amend.

The

demurrer to the third cause of action in the FAC is OVERRULED.

Moving

party is ordered to give notice.